

25VECV04129 25VECV04129

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-07-29

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Case Number: 25VECV04129 Hearing Date: July 29, 2026 Dept: I

25VECV04129 MANSOUR ROSTAMI v. BMW OF
NORTH AMERICA, LLC., et al.

July 29, 2026, at 8:30 a.m.

Van Nuys Courthouse East, Dept. I

Tentative Ruling – Motion to Compel
Deposition

I.

Background

On July 24, 2025, Plaintiff Mansour Rostami ("Plaintiff") filed a complaint against Defendants BMW of North America, LLC, Bob Smith BMW Mini (collectively, "Defendants"), and Does 1 to 10 alleging six causes of action: (1) Violation of Cal. Civ. Code § 1793.2(d); (2) Violation of Civ. Code § 1793.2(b); (3) Violation of Civ. Code § 1793.2(a)(3); (4) Breach of the Implied Warranty of Merchantability; (5) Negligent Repair; and (6) Fraudulent Inducement – Concealment.

On June 11, 2026, Defendants filed the instant motion to compel the deposition of Plaintiff. Defendants further seek monetary sanctions against Plaintiff in the amount of \$1,935.00.

On July 14, 2026, Plaintiff filed an opposition.

On July 22, 2026, Defendants filed a reply.

II. Motion to Compel Deposition

Code of Civil Procedure section 2025.450 provides in pertinent part:

“(a) If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice

(b) A motion under subdivision (a) shall comply with both of the following:

(1) The motion shall set forth specific facts showing good cause justifying the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.

(2) The motion shall be accompanied by a meet and confer declaration under Section 2016.040 or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance.”

(Code Civ. Proc., § 2025.450.)

Discussion

On November 6, 2025, Defendants' counsel emailed a meet and confer letter to obtain Plaintiff's availability for deposition, requesting Plaintiff provide dates of availability by November 13, 2025. (Sheehan Decl., ¶

3.) On November 24, 2025, after not receiving a response, Defendants unilaterally noticed Plaintiff's deposition for February 17, 2026. (Sheehan Decl., ¶ 4.) On February 11, 2026, Plaintiff served an objection to Defendants' Notice of Deposition, stating Plaintiff's deposition was unilaterally noticed by Defendant for a date and time on which Plaintiff and/or Plaintiff's counsel was unavailable. (Sheehan Decl., ¶ 5; Wong Decl., ¶ 4, Ex. 2.) On February 17, 2026, Plaintiff's counsel emailed stating Plaintiff is only available on May 12, 2026, and May 13, 2026. (Sheehan Decl., ¶ 8.)

On February 23, 2026, Defendants' counsel responded, asking for dates of availability in March or April. (Sheehan Decl., ¶ 9.) The following day, Plaintiff's counsel emailed Defendants' counsel, stating Plaintiff is unable to accommodate March or April dates for Plaintiff's deposition. (Sheehan Decl., ¶¶ 9, 10.)

On April 23, 2026, Defendants' counsel emailed stating Plaintiff's deposition was scheduled for May 13, 2026. (Sheehan Decl., ¶ 11.) On May 8, 2026, Plaintiff emailed an objection to the deposition, asking to reschedule the start time from 10:00 a.m. to 2:00 p.m. due to an attorney falling ill. (Sheehan Decl., ¶ 12; Wong Decl., ¶ 11, Ex. 6.) On May 11, 2026, Plaintiff's counsel emailed saying they will move forward with rescheduling Plaintiff's deposition for July or August. (Sheehan Decl., ¶ 13.) Defendants' counsel stated that if Plaintiff does not appear on May 13, 2026, Defendants will have to file a motion to compel. (Sheehan Decl., ¶ 13.) On May 12, 2026, Defendants' counsel reached out to Plaintiff's counsel with details of the noticed deposition to begin on May 13, 2026. (Sheehan Decl., ¶ 14.) Plaintiff's counsel responded, saying the deposition will need to be rescheduled for July or August. (Sheehan Decl., ¶ 14.) Plaintiff failed to appear for the May 13, 2026, deposition. (Sheehan Decl., ¶ 15.)

In opposition, Plaintiff argues Plaintiff has always been willing to appear for deposition and has actively coordinated with Defendants' counsel to secure a mutually available date. (Opp., p. 3.) Plaintiff contends that, because Plaintiff has offered multiple deposition dates and remains willing and available to appear for deposition, Defendants' motion should be denied. (Opp., p. 3.)

In reply, Defendants state Plaintiff has now offered July

28, 2026, as a date for Plaintiff's deposition. (Rep., pp. 1-2.) However, because of Plaintiff's pattern of failure to comply with discovery obligations, Defendants request the Court issue an order for Plaintiff to appear and be deposed on July 28, 2026, to begin at a mutually agreed upon starting time no later than 11 a.m. (Rep., p. 2.)

As a preliminary matter, the Court notes that Plaintiff's objection to the February 17, 2026, deposition was invalid. Though not directly germane to this motion, if Plaintiff could not appear on the date noticed, then Plaintiff's recourse absent an agreement with opposing counsel would have been to seek a protective order under CCP §2025.420.

However, the parties rescheduled the deposition to the agreed upon date of May 13, 2026. Plaintiff's objection to the May 13, 2026, deposition is invalid under Code of Civil Procedure section 2025.410, as, inter alia, Plaintiff's email was not proper service of their objection.

Further, while counsel have agreed to a deposition date of July 28, 2026, the deposition was initially set for February 17, 2026, and rescheduled for May 13, 2026. Given the difficulties in scheduling Plaintiff's deposition, Defendants' motion to compel Plaintiff's deposition is granted. Plaintiff is ordered to appear for a deposition on July 28, 2026, with an agreed upon start time no later than 11 a.m.

Sanctions

Defendants request sanctions in the amount of \$1,935.00, consisting of three hours preparing the instant motion, an anticipated one hour reviewing the opposition and preparing a reply, and one hour preparing for and appearing at the hearing at an hourly rate of \$375.00, as well as a \$60.00 filing fee. (Sheehan Decl., ¶ 19.) However, considering the simplicity of this motion, the Court reduces this amount to \$1,560.00, consisting of two hours preparing the instant motion, one hour reviewing the opposition and preparing a reply, one hour preparing for and appearing at the hearing at an hourly rate of \$375.00, and the \$60.00 filing fee.

III.

Conclusion

Based on the foregoing, Defendants' motion to compel Plaintiff's deposition is GRANTED. Plaintiff is ordered to appear for deposition on July 28, 2026, start time to be no later than 11:00am.

Additionally, Plaintiff and its counsel, jointly and severally, are to pay Defendants' counsel sanctions in the amount of \$1,560.00 within 30 days of this order.

Moving party to give notice.